

TENTATIVE RULING

Case: **Din v. Medical Staff of Sutter Davis Hospital**
 Case No. CV2023-1882

Hearing Date: **June 2, 2026** **Department Fourteen** **9:00 a.m.**

Parties are **DIRECTED TO APPEAR.**

TENTATIVE RULING

Case: **Ghavamzadeh v. Lock**
Case No. CV2025-2216

Hearing Date: **June 2, 2026** **Department Fourteen** **9:00 a.m.**

The Court notes that defendants did not meet and confer “in person, by telephone, or by video conference” prior to the filing of this demurrer. (Code Civ. Proc., § 430.41, subd. (a); Corsaut decl., ¶¶ 2-3, Exhibits A & B.) However, “[a] determination by the court that the meet and confer process was insufficient shall not be grounds to overrule or sustain a demurrer” and therefore, the Court reaches the merits of defendant’s demurrer. (Code Civ. Proc., § 430.41, subd. (a)(4).)

Defendants Norcal Gold, Inc. and Tracy Harris’ (collectively, “defendants”) demurrer to the first cause of action (breach of contract) in plaintiff Vesta Ghavamzadeh, as Trustee of The Olivia & Elliot Trust’s (“plaintiff”) first amended complaint (“FAC”) on the ground of failure to state a cause of action is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) Defendants have failed to establish that the complaint does not state facts sufficient for this cause of action. (See *Richman v. Hartley* (2014) 224 Cal.App.4th 1182, 1186; *McKell v. Washington Mutual, Inc.* (2006) 142 Cal.App.4th 1457, 1489; see also *Quantum Cooking Concepts, Inc. v. LV Associates, Inc.* (2011) 197 Cal.App.4th 927, 934 [noting that “the trial court had no obligation to undertake its own search of the record ‘backwards and forwards to try to figure out how the law applies to the facts’ of the case”], citation omitted; FAC, ¶¶ 28-34, Exhibits B & C.)

Defendants’ demurrer to the first cause of action (breach of contract) in plaintiff’s FAC on the ground of uncertainty is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (f).) Defendants have failed to show this cause of action is “so incomprehensible” that defendants cannot reasonably respond. (*A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 695; *Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616; FAC, ¶¶ 28-34.)

Defendants have 10 days from the hearing date, by no later than **June 12, 2026**, to answer plaintiff’s FAC complaint. (Cal. Rules of Court, rule 3.1320(j).)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.